

ELIZABETH II



1970 CHAPTER xiii

An Act to confer further powers on the mayor, aldermen and burgesses of the London borough of Havering in relation to the development of land; and for other purposes. [15th May 1970]

WHEREAS—

(1) The London borough of Havering is a London borough under the management and local government of the mayor, aldermen and burgesses of that borough (hereinafter called “the Corporation”):

(2) It is expedient that the Corporation should be authorised to participate in the development of land as by this Act provided:

(3) It is expedient that the other provisions in this Act should be enacted:

(4) The purposes of this Act cannot be effected without the authority of Parliament:

1933 c. 51. (5) In relation to the promotion of the Bill for this Act the
1963 c. 33. requirements of Part XIII of the Local Government Act 1933 as
applied by the London Government Act 1963 have been observed:

May it therefore please Your Majesty that it may be enacted,
and be it enacted, by the Queen's most Excellent Majesty, by and
with the advice and consent of the Lords Spiritual and Temporal,
and Commons, in this present Parliament assembled, and by the
authority of the same, as follows:—

Short title. 1. This Act may be cited as the Haverling Corporation Act 1970.

Interpretation. 2.—(1) In this Act the following expressions have the meanings
hereby respectively assigned to them:—

“the borough” means the London borough of Haverling;

“the Corporation” means the mayor, aldermen and
burgesses of the borough;

“enactment” includes an enactment in this Act, or in any
general or local Act and any order, byelaw, scheme or
regulation for the time being in force within the borough.

(2) Any reference in this Act to an enactment shall be construed
as a reference to that enactment as applied, extended, amended or
varied by, or by virtue of, any enactment including this Act.

Power to
participate in
development
of land.

3.—(1) Where by any enactment power to dispose of land is
conferred upon the Corporation that power shall be deemed to
include and always to have included power for the Corporation,
for the purposes of their participation in any development of land
in the borough and belonging to them or which they have agreed
to acquire, to enter into and carry into effect an agreement with
any person whereby provision is made—

(a) for the payment of a sum of money by the Corporation to
the said person in consideration for which the Corpora-
tion is granted an interest in such development;

(b) where the said person is a company incorporated in the
United Kingdom, for the taking or acquiring by the
Corporation of shares or other securities in that
company:

Provided that the Corporation shall not, in pursuance
of this paragraph, take or acquire such an interest as
would give the Corporation a controlling interest in
that company; or

(c) for any other related or consequential matters;

subject to such terms and conditions as may be specified in the
agreement, which terms and conditions may provide for a charge
on the land or the income therefrom.

(2) The powers conferred by this section to participate in the development of land shall include a power further to participate in any such development from time to time; and any exercise of such powers shall for the purposes of section 9 (Investment of superannuation funds in acquisition, etc., of land) of the Greater London Council (General Powers) Act 1967, notwithstanding 1967 c. xx anything to the contrary in that section, be such an investment as is authorised therein.

4.—(1) The Corporation may borrow—

Power to
borrow.

(a) such sums as may be necessary for any of the purposes of this Act;

(b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Local Government Act 1933 shall have effect as if money 1933 c. 51. borrowed under this section were borrowed under that Part.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

1946 c. 58.

5. All the costs, charges and expenses preliminary to and of Costs of Act. and incidental to the preparing, applying for, obtaining and passing of this Act shall be paid by the Corporation.

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